

CONSTRUCTION / WORK CONTRACT

THIS CONSTRUCTION AGREEMENT (the "Agreement") is made and entered into on this **23rd day of December, 2025** (the "Effective Date"),

BY AND BETWEEN:

ALPHA INFRASTRUCTURE PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U45678TG2017PTC876543**, having its registered office at **Plot No. 78, HITEC City, Hyderabad – 500081, Telangana, India**, represented herein by its authorized signatory **Mr. Rajesh Verma**, Managing Director (hereinafter referred to as the "Contractor", which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

OMEGA DEVELOPERS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U23456TG2019PTC654321**, having its registered office at **Plot No. 12, Whitefield, Bengaluru – 560066, Karnataka, India**, represented herein by its authorized signatory **Ms. Priya Sharma**, Chief Executive Officer (hereinafter referred to as the "Client", which expression shall, unless repugnant to the context, include its successors and permitted assigns).

(The Contractor and Client are individually referred to as a "Party" and collectively as the "Parties".)

RECITALS

A. The Client desires to construct a commercial office complex at **Plot No. 25, Electronic City, Bengaluru – 560100, Karnataka, India** (the "Project Site").

B. The Contractor represents that it has the necessary experience, personnel, equipment, and licenses to perform the construction work in accordance with industry standards.

C. The Parties wish to define the terms, conditions, and responsibilities for the execution, completion, and payment of the construction project.

1. SCOPE OF WORK

1.1 The Contractor shall perform all construction, civil, electrical, and finishing work required for the Project as per the **approved architectural and engineering drawings** attached as Schedule A.

1.2 The Contractor shall supply all labor, materials, tools, and equipment necessary for completion of the Project.

1.3 The Contractor shall adhere to timelines, quality standards, safety regulations, and statutory requirements.

2. CONTRACT PRICE AND PAYMENT

2.1 The total contract value is **INR 7,50,00,000/- (Rupees Seven Crore Fifty Lakh Only)**, inclusive of all materials, labor, and applicable taxes.

2.2 Payment Schedule:

- **10%** on signing of this Agreement (Advance Payment);
- **40%** upon completion of foundation and structural work;
- **30%** upon completion of finishing and interiors;
- **20%** upon final completion and handover of the Project.

2.3 Payments shall be made within **15 working days** of submission of invoices by the Contractor.

3. TIMELINES AND COMPLETION

3.1 The Project shall commence on **1st January 2026** and is expected to be completed by **31st December 2026**.

3.2 Any delay caused due to reasons beyond Contractor's reasonable control (force majeure) shall extend the completion date proportionally.

3.3 Liquidated Damages: In case of delay attributable to the Contractor, **INR 50,000/- per week** shall be payable as liquidated damages, capped at **5% of the total contract value**.

4. WARRANTIES AND DEFECT LIABILITY

4.1 The Contractor warrants that all work shall conform to approved plans, specifications, and applicable building codes.

4.2 The Contractor shall rectify defects arising within **12 months** from the date of completion at its own cost.

4.3 Structural defects discovered within **5 years** shall be rectified by the Contractor, subject to terms of applicable laws.

5. OBLIGATIONS OF THE CLIENT

5.1 Provide access to the Project Site and obtain all statutory approvals required for construction.

5.2 Make timely payments as per the agreed schedule.

5.3 Cooperate in inspection, testing, and handover procedures.

6. INTELLECTUAL PROPERTY

6.1 All architectural designs, drawings, and plans provided by the Client remain the intellectual property of the Client.

6.2 The Contractor may not use the designs for any other project without prior written consent.

7. CONFIDENTIALITY

7.1 The Contractor shall maintain confidentiality of all designs, plans, and proprietary information provided by the Client.

7.2 This obligation shall survive **5 years** post completion or termination of the Agreement.

8. TERMINATION

8.1 Either Party may terminate the Agreement for material breach, insolvency, or failure to perform obligations after **30 days' written notice**.

8.2 Upon termination, the Contractor shall be entitled to payment for work completed and materials procured up to the termination date.

9. DISPUTE RESOLUTION

9.1 Any disputes arising from this Agreement shall first be attempted to resolve amicably.

9.2 If unresolved, disputes shall be referred to **arbitration under the Indian Arbitration and Conciliation Act, 1996**, with venue at **Bengaluru, Karnataka**.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of India**.

11. MISCELLANEOUS

11.1 Entire Agreement: This Agreement supersedes all prior discussions and agreements between the Parties.

11.2 Amendments: Must be in writing and signed by both Parties.

11.3 Force Majeure: Neither Party is liable for delays due to causes beyond reasonable control.

11.4 Severability: Invalid provisions shall not affect the remainder of the Agreement.

12. SIGNATURES

For Alpha Infrastructure Pvt Ltd (Contractor)

Signature: _____

Name: **Mr. Rajesh Verma**

Designation: Managing Director

Date: 23 December 2025

For Omega Developers Pvt Ltd (Client)

Signature: _____

Name: **Ms. Priya Sharma**

Designation: Chief Executive Officer

Date: 23 December 2025

Witnesses:

1. Name: **Mr. Arjun Rao** | Signature: _____ | Address: Hyderabad, Telangana
2. Name: **Ms. Kavya Menon** | Signature: _____ | Address: Bengaluru, Karnataka